

25STCV22548 25STCV22548

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Case Number: 25STCV22548 Hearing Date: June 23, 2026 Dept: 414

25STCV22548 David Rodriguez v. Verizon Communications,

Inc.

Tuesday,

June 23, 2026

[TENTATIVE] ORDER GRANTING

DEFENDANT VERIZON WIRELESS SERVICES, LLC'S MOTION TO COMPEL ARBITRATION AND

STAY ACTION (8878)

I.

BACKGROUND

Plaintiff

alleges Defendant breached an online promotional bundled agreement which

included Apple products, an Apple watch, and an extra line. Plaintiff did not

receive the Apple watch or an extra Apple iPhone 16 Pro. Plaintiff sues for

\$75,000 in damages.

Defendant

moves to compel arbitration and stay the action. The written customer agreements and the retail installment contracts between the parties require binding arbitration of all disputes.

Defendant

timely served the motion on Plaintiff, who did not file an opposition.

II.

LEGAL STANDARDS

The court can order the

parties to arbitrate the matter on petition of a party to an arbitration

agreement. (Code Civ. Proc., § 1281.2.) The petitioner's burden

is to establish that a valid arbitration agreement exists. The opposing party's

burden is to establish a defense to enforcement based on a preponderance of

evidence. (Molecular

Analytical Systems v. CIPHERGEN Biosystems, Inc. (2010) 186 Cal.App.4th

696, 705.)

Courts

apply state law to determine who is bound by an arbitration agreement and who

may enforce it. (Thomas v.

Westlake (2012) 204 Cal.App.4th 605, 614, fn. 7); Rosenthal v.

Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 410 ["Because the California procedure for deciding motions to compel [arbitration] serves to further, rather than defeat, full and uniform effectuation of the federal law's objectives, the California law, rather than section 4 of the USAA, is to be followed in California courts."].)

Under

Section 2 of the FAA, written arbitration agreements are valid, irrevocable, and enforceable "save upon such grounds as exist at law or in equity for the revocation of a contract." (Arthur

Andersen LLP v. Carlisle (2009) 556 U.S. 624, 629–630; 9 U.S.C.A. § 2.) Section 3 of the FAA requires the court to stay the action if it involves issues referable to arbitration. (9 U.S.C.A. § 3.)

III.

DISCUSSION

There

are four written agreements requiring arbitration of disputes. On November 10,

2024, Plaintiff signed a retail installment contract for the purchase of an

Apple iPhone 16. (Ex. A.)

"ANY DISPUTES UNDER THIS DEVICE PAYMENT AGREEMENT SHALL BE RESOLVED IN

ACCORDANCE WITH THE DISPUTE RESOLUTION PROVISIONS IN YOUR CUSTOMER AGREEMENT

UNDER THE HEADING: HOW DO I RESOLVE DISPUTES WITH VERIZON WIRELESS, WHICH TERMS ARE INCORPORATED BY REFERENCE. SPECIFICALLY, YOU AND VERIZON WIRELESS BOTH AGREE TO RESOLVE ALL DISPUTES UNDER THIS DEVICE PAYMENT AGREEMENT ONLY BY ARBITRATION OR SMALL CLAIMS COURT AND YOU WAIVE ANY RIGHT TO A JUDGE OR JURY IN ANY ARBITRATION.” (Ex. A, ¶ 1.)

Plaintiff signed a second

retail installment contract on the same date for an Apple iPad. The agreement

contains the same arbitration provision. (Ex. B, ¶ 1.)

Both

agreements incorporate the terms of the “Customer Agreement”. (Ex. D.) That

Agreement states under the heading “How Do I Resolve Disputes with Verizon.”

Beneath that heading, both parties agreed to resolve disputes only by

arbitration or in small claims court. (Ex. D, p. 6.)

Plaintiff

signed a sales receipt for the purchases of these devices. (Ex. C.) The receipt

states that the customer agrees to the Verizon Customer Agreement “including

settlement of dispute by arbitration instead of jury trial.” (Ex C, p. 4).

Plaintiff

admits in his complaint that he brings suit “on behalf of the online agreement

purchase on 11-10-24” which he initialed. He alleges the receipt refers to other

equipment that Plaintiff did not agree to purchase in the original agreement.

(Complaint, p. 1.) Accordingly, the

claims alleged in the complaint fall within the scope of the four agreements.

Plaintiff

did not file an opposition, accordingly there are no defenses to enforcement

raised which is Plaintiff's burden.

IV.

CONCLUSION

Accordingly,

the motion to compel arbitration is GRANTED.